

25NWCV04546 25NWCV04546

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Case Number: 25NWCV04546 Hearing Date: August 13, 2026 Dept: L

TENTATIVE ORDER

I.

Plaintiff Allegiant Partners

Incorporated's Application for Writ of Attachment as to Defendant HK Trans LLC is GRANTED.

II.

Plaintiff Allegiant Partners

Incorporated's Application for Writ of Attachment as to Defendant Miguel Roque is GRANTED.

III.

Plaintiff Allegiant Partners Incorporated's

Application for Writ of Possession as to Defendant HK Trans LLC is GRANTED.

Plaintiff to give notice.

Background

This is an action for breach of contract. On December 23, 2025, Plaintiff Allegiant Partners Incorporated ("Plaintiff") filed this action against Defendant HK Trans LLC ("HK Trans LLC"), Miguel Roque ("Roque"), (collectively, "Defendants") and Does 1 to 20. The Complaint alleges that Plaintiff entered into two Equipment Finance Agreements ("Agreements") with HK Trans, whereby HK Trans leased two 2018 Freightliner Cascadias from Plaintiff. In connection with the Agreements, Plaintiff entered into two personal guaranty agreements ("Guaranties") with

Roque. HK Trans thereafter defaulted payment pursuant to the terms of the Agreements. Plaintiff has been damaged in the total amount of \$55,011.30 plus prejudgment interest regarding the first Agreement and \$63,635.20 plus prejudgment interest regarding the second Agreement.

The Complaint alleges the following causes of action:

1. Breach
of Equipment Finance Agreement (against HK Trans and Does 1-5);
2. Breach
of Guaranty (against Roque and Does 6-10);
3. Breach
of Equipment Finance Agreement (against HK Trans and Does 11-15);
4. Breach
of Guaranty (against Roque and Does 16-20);
5. Account
Stated (against all Defendants); and
6. Claim
and Delivery (against all Defendants).

The following matters are on calendar:

- Plaintiff's
Application for Writ of Attachment as to HK Trans

- Plaintiff's
Application for Writ of Attachment as to Roque

-
Plaintiff's Application for Writ of Possession
as to HK Trans

The Court will address the Applications for Writ of

Attachment concurrently, and then address the Application for Writ of Possession.

The Court initially notes that Defendants were served the Summons and Complaint, the Notice of Applications and Hearing, and Applications for Writ of Attachment and Possession via substituted service on May 5, 2026. (See 5/12/26 POS.)

No oppositions have been filed as of August 12, 2026.

I.

Applications for Writ of Attachment

Legal Standard

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (Code Civ. Proc., § 484.010.)¿

The application shall be executed under oath and must include:¿

¿

1. a

statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued;¿

2. a

statement of the amount to be secured by the attachment;¿

3. a

statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based;¿

4. a

statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding

under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and

5. a

description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment.¿

¿

(Code Civ.

Proc., § 484.020.)¿

¿

“The application [for a writ of attachment] shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (Code Civ. Proc., § 484.030.) Statutory attachment procedures are purely creations of the legislature and as such “are subject to strict construction.” (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 79 (internal quotations omitted).) A judge does not have authority to order any attachment that is not provided for by the attachment statutes.¿(Jordan-Lyon Productions, Ltd. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1466.) “In contested applications, the court must consider the relative merits of the positions of the respective parties and make a determination of¿the probable outcome of the litigation.” (Id. at p. 80 (ellipses and internal quotations omitted).)¿

Before the hearing on the Writ of Attachment, the defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof.¿(Code Civ. Proc., § 484.040.)

¿

The Court shall issue a right to attach order if the Court finds all of the following:¿

1. The

claim upon which the attachment is based is one upon which an attachment may be

issued.¿

2. The

plaintiff has established the probable validity of the claim upon which the attachment is based.¿

3. The

attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.¿

4. The

amount to be secured by the attachment is greater than zero.¿

¿

(Code Civ. Proc., § 484.090.)

Discussion

Basis

of Attachment

The

Court shall issue a right to attach order if the claim upon which the attachment is based is one upon which an attachment may be issued. (Code Civ. Proc., § 484.090.) "[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Proc., § 483.010, subd. (a).)

"If the action is against

a defendant who is a natural person, an attachment may be issued only on a claim which arises out of the conduct by the defendant of a trade, business, or profession. An attachment may not be issued on a claim against a defendant who is a natural person if the claim is based on the sale or lease of property, a license to use property, the furnishing of services, or the loan of money where the property sold or leased, or licensed for use, the services furnished, or the money loaned was used by the defendant primarily for personal, family, or household purposes." (Code Civ. Proc., § 483.010, subd. (c).)

Here,

Plaintiffs' attachment claim is based on HK Trans' breach of the Agreements and the Guaranties with Roque. Plaintiff claims that, pursuant to the Agreements, Defendants currently owe an outstanding principal balance of \$55,011.30, plus prejudgment interest regarding the first Agreement and \$63,635.20 plus prejudgment interest regarding the second Agreement. (See Jueschke Decl., ¶¶ 4-14.) Plaintiff asserts that the total fair market value of the equipment is \$25,000.00 and the total amount owed to Plaintiff is \$118,646.50, and thus, Plaintiff is unsecured in the amount of \$93,646.50. (Jueschke Decl., ¶ 27.) Plaintiff requests a total writ of attachment in the amount of \$125,161.87, consisting of the unsecured amount of \$93,646.50, prejudgment interest of \$28,077.44 (rate of 18 percent pursuant to the Agreements calculated from April 13, 2024 to December 11, 2025), attorney's fees of \$2,762.93, and costs of \$675.00. (Jueschke Decl., ¶ 29.)

Plaintiff asserts that

attachment is proper against Roque as a personal grantor because Roque personally benefitted from the Agreements and Guaranties. In other words, Plaintiff's claim against Roque arises out of his conduct of a trade, business, or profession.

The Court agrees. "[I]f the sum total of the circumstances justifies the conclusion that the guarantor occupied himself to a substantial degree and on a continuing basis in promoting his own profit through provision of credit or management to the primary obligor, a guarantee executed in the course of such activity may properly be considered an obligation arising out of the conduct of the guarantor's business." (Advance Transformer Co. v. Superior Court (1974) 44 Cal.App.3d 127, 144.) Here, Roque signed the Agreements and signed the related Guaranties as a member of HK Trans. Plaintiff's claim against him arises out of his conduct of business.

The Court finds that

Plaintiff demonstrates a valid basis for attachment under written agreements.

Property

to be Attached

All property within California held by a corporation is subject to

attachment if there is a statutory method of levy for the property. (Code Civ. Proc., § 487.010, subd. (a).) Where the defendant is a natural person, real property, accounts receivable, chattel paper, and general intangibles arising out of the conduct by the defendant of business, equipment, inventory, money on the premises where a business is conducted by the defendant, money in deposit accounts off the premises (except for the first one thousand dollars (\$1,000)), and other property are appropriate property to be attachment. (Code Civ. Proc., § 487.010, subd. (c).)

As to HK Trans, a limited liability company, Plaintiff seeks to attach all property. (HK Trans Attach. App., ¶ 8.)

As to Roque, a natural person, Plaintiff seeks to attach the following property:

“1. Property including equipment and inventory of a going business pursuant to CCP Sections 488.375 and 488.395; 2. All vehicles of a going business pursuant to CCP section 488.385; 3. Deposit accounts thereof pursuant to CCP section 488.455; 4. Property in a safe-deposit box pursuant to CCP 488.460; 5. Any accounts receivable or general intangibles pursuant to CCP section 488.470; 6. Any and all real property.”

(Roque Attach. App., ¶ 8.)

The Court finds that the property sought to be attached is appropriate. The Application is unopposed, and Roque has not filed a claim of exemption as to the property to be attached.

Probable Validity of Plaintiff's Claims

“A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code of Civ. Proc., § 481.190.) “If the defendant opposes the application, ‘the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.’ [Citations.]” (Pech v. Morgan (2021) 61 Cal.App.5th 841, 855.)

To

state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

Plaintiff

has established the elements for breach of contract and breach of guaranty. On July 15, 2026, Plaintiff and HK Trans entered into the Agreements, whereby HK Trans leased certain equipment. (Jueschke Decl., ¶¶ 4, 11, Exhs. 1, 3.) To induce Plaintiff to enter into the Agreements, Plaintiff and Roque entered into the related Guaranties, whereby Roque agreed to guaranty HK Trans’ obligations under the Agreements. (Jueschke Decl., ¶¶ 5, 11, Exhs. 2, 4.) HK Trans defaulted on the first Agreement on April 13, 2022 and on the second Agreement on February 28, 2025. (Jueschke Decl., ¶¶ 6, 13.) Pursuant to the Agreements, the entire balance of the payments under the Agreements became immediately due and payable to Plaintiff. (Jueschke Decl., ¶¶ 7, 14.) Plaintiff has performed all of its obligations under the terms of the Agreements, except as excused or prevented by the conduct of HK Trans. (Jueschke Decl., ¶¶ 10, 17.) Plaintiff has been damaged in the amount of \$55,011.30 regarding the first Agreement and \$63,635.20 regarding the second Agreement, plus 18 percent pre-judgment interest pursuant to the terms of the Agreements. (Ibid.) The Agreements and Guaranties also provide for reasonable attorney’s fees and costs incurred for their enforcement. (Jueschke Decl., ¶ 19.)

No oppositions have
been filed.

The Court finds that
Plaintiff has established a probable validity of its claims.

Purpose and Bankruptcy
Status

In compliance with Code
of Civil Procedure section 484.020, subdivisions (c) and (d), Plaintiff states that 1) attachment is not sought for a purpose other than the recovery on a claim upon which the attachment is based, 2) Plaintiff is not

seeking attachment of

Defendants' property for any purpose other than recovery for my claim, and 3) Plaintiff has no information or believe that my claim is discharged or has been stayed by any bankruptcy proceeding. (HK Trans Attach. App., ¶¶ 4-5; Roque Attach. App., ¶¶ 4-5 ; Jueschke Decl., ¶ 20.)

Undertaking

"Before

issuance of a writ of attachment...or an order under subdivision (b) of Section 491.415, the plaintiff shall file an undertaking to pay the defendant any amount the defendant may recover for any wrongful attachment by the plaintiff in the action." (Code Civ. Proc., § 489.210.) "[T]he amount of an undertaking filed pursuant to this article shall be ten thousand dollars (\$10,000)." (Code Civ. Proc., § 489.220.)

Plaintiff

has not filed an undertaking for both Applications. (HK Trans Attach. App., ¶ 15; Roque Attach. App., ¶ 15.) Thus, Plaintiffs are ordered to file a \$10,000.00 undertaking for each Application.

II.

Application for Writ of Possession

Legal Standard

"Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought." (Code Civ. Proc., § 512.010, subd. (a).)¿¿

Pursuant to Code of Civil

Procedure § 512.010, subdivision (b), the application must be submitted under oath and include:¿¿

1. A

showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed;

2. A

showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession;

3. A

particular description of the property and a statement of its value;

4. The

property's location based on plaintiff's knowledge, information, and belief; and

5. A

statement that the property has not been seized by statute or execution against it.¿

Before the hearing on the Writ of

Possession, the defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of Application and Hearing; and (3) a copy of the application and any affidavit in support thereof.¿ (Code Civ. Proc., § 512.030.)¿¿

"If a writ of possession is

issued, the court may also issue an order directing the defendant to transfer possession of the property to the plaintiff. Such order shall contain a notice to the defendant that failure to turn over possession of such property to plaintiff may subject the defendant to being held in contempt of court." (Code Civ. Proc., § 512.070.)

¿ "The writ will be issued if the

court finds that the plaintiff's claim is probably valid and the other requirements for issuing the writ are established."¿ (Code Civ. Proc. § 512.040, subd. (b).)¿ "A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim."¿ (Code Civ. Proc., § 511.090.)¿

Discussion

Plaintiff applies for Writ

of Possession of certain property (hereinafter, "Equipment") wrongfully retained by HK Trans. Plaintiff's claim and right to possession is detailed in

the Complaint and the Declaration of David Jueschke. (Poss. App., ¶¶ 3, 5.) Specifically, pursuant to HK Trans' default on the Agreements, Plaintiff is entitled to immediate possession of the Equipment. (Jueschke Decl., ¶ 24.) The Equipment is described as follows:

- 2018

Freightliner Cascadia VIN 3AKJHHDRSJSJJ1435; Fair Market Value \$12,500.00

- 2018

Freightliner Cascadia Serial #3AKJHHDRSJSJJ0807; Fair Market Value \$12,500.00

(Poss. App., ¶ 4; Jueschke Decl., ¶ 26.)

To Plaintiff's knowledge, the Equipment is located at 8689 Bowers Avenue, South Gate, CA 90280. (Poss. App., ¶ 5.)

No opposition has been filed.

As discussed previously, the Court finds that Plaintiff has established a probable validity of its claims.

Code of Civil

Procedure section 515.010, subdivision (a) states that the court shall not issue a writ of possession until the plaintiff has filed an undertaking with the court. However, "[i]f the court finds that the defendant has no interest in the property, the court shall waive the requirement of the plaintiff's undertaking and shall include in the order for issuance of the writ the amount of the defendant's undertaking sufficient to satisfy the requirements of subdivision (b) of Section 515.020." (Code Civ. Proc., § 515.010, subd. (b).)

Based on the evidence, the Court finds that HK Trans has no interest in the Equipment. Thus, the undertaking requirement is waived.